

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

EDWARD CARTER (EN 767793),

A Permanent Certificated Employee,

Respondent.

OAH No. 2019060346

DECISION AFTER JOINT STIPULATION

The Los Angeles Unified School District (school district) is represented in this matter by My T. Huynh, Associate General Counsel, of the Office of the General Counsel, Los Angeles Unified School District. Respondent is represented by Tamra M. Smith, of Equality Law LLP.

On September 9, 2019, the school district filed a Request for Withdrawal, stating that the Board of Education of the school district had voted to rescind its dismissal action against respondent Edward Carter (respondent) and that the school district thus was requesting dismissal of the above-captioned matter, without prejudice. Respondent then requested, pursuant to Education Code section 44944, subdivision (d)(1)(C), and the holding in *Boliou v. Stockton Unified School District* (2012) 207 Cal.App.4th 170, 177-179, that the Office of Administrative Hearings issue a written determination that respondent should not be dismissed.

On September 18, 2019, a telephonic status conference was held before Presiding Administrative Law Judge Susan L. Formaker (PALJ Formaker) to discuss the issues raised by the parties' papers on the request for dismissal. Later on September 18, 2019, the school district filed the parties' joint stipulation ("joint stipulation"), in accordance with the discussion during the telephonic status conference, regarding the school district's withdrawal of the dismissal action. The joint stipulation is the basis for the following findings, conclusions, and order: The record was closed and the matter was submitted for decision before PALJ Formaker on September 18, 2019.

FACTUAL FINDINGS

1. Respondent is a permanent certified employee of the school district.
2. On April 5, 2019, the school district issued a Statement of Charges seeking respondent's immediate suspension without pay and dismissal for alleged causes specified in Education Code sections 44932 and 44939. Respondent submitted a Request for Hearing and Notice of Defense to the Statement of Charges on June 7, 2019. On June 12, 2019, the school district filed and served its Accusation against respondent. On September 3, 2019, the Board of Education of the school district voted to rescind its dismissal action against respondent. The school district has requested the withdrawal and dismissal of this matter, without prejudice.
3. Pursuant to the parties' joint stipulation, the parties have waived the right to convene a Commission on Professional Competence and have stipulated to having the hearing conducted by a single administrative law judge pursuant to Education Code section 44944, subdivision (c)(1). The parties' joint stipulation further provides that the administrative law judge conducting the hearing shall have all the powers

provided under Education Code section 44944, subdivision (c)(1), shall decide the matter, and shall prepare a written decision pursuant to Education Code section 44944, subdivision (d)(1). Through the joint stipulation, the parties agree and request that the decision contain a disposition that respondent should not be dismissed.

4. A formal hearing is not required, and would constitute an undue burden on the parties, given the parties' joint stipulation. This Decision is issued based on the parties' joint stipulation, in lieu of a formal hearing.

LEGAL CONCLUSIONS

1. Based on the school district's rescission of the dismissal action against respondent and the parties' joint stipulation, cause does not exist for respondent's dismissal under either Education Code section 44932 or Education Code section 44939.

2. Based on the joint stipulation and the ruling in *Boliou v. Stockton Unified School District* (2012) 207 Cal.App.4th 170,177-179, respondent is entitled to a disposition that he should not be dismissed.

ORDER

The Statement of Charges and Accusation are dismissed. Respondent should not be dismissed from his employment with the Los Angeles Unified School District.

DATE: November 26, 2019

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Susan L. Formaker
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SUSAN L. FORMAKER

Presiding Administrative Law Judge
Office of Administrative Hearings